Priya Nair
Address: _____
Phone: _____
Email: _____
Applicant, Self-Represented

IN THE SUPERIOR COURT OF JUSTICE — TORONTO

Court File No. _____

IN THE MATTER OF AN APPLICATION FOR DIVORCE

BETWEEN:

PRIYA NAIR
Applicant

AND

DANIEL OKAFOR
Respondent

APPLICATION FOR DIVORCE

I. PARTIES

1. Applicant, Priya Nair, is a resident of Toronto, Ontario.

2. Respondent, Daniel Okafor, is a resident of 12 Elm Drive, Mississauga, Ontario.

II. JURISDICTION AND VENUE

3. Either the Applicant or the Respondent has been habitually resident in the Province of Ontario for at least one year immediately preceding the filing of this Application, as required by section 3(1) of the Divorce Act, RSC 1985, c. 3 (2nd Supp.).

4. Venue is proper in Toronto because the Applicant or Respondent resides in Toronto.

III. MARRIAGE INFORMATION

5. Applicant and Respondent were married on June 14, 2014 in Toronto, Ontario.

6. The parties separated on or about March 3, 2024.

IV. GROUNDS FOR DIVORCE

7. The spouses have lived separate and apart for at least one year immediately preceding the determination of the divorce proceeding, within the meaning of paragraph 8(2)(a) of the Divorce Act.

V. CHILDREN

8. The following children were born of or adopted during this marriage:

    (a) Anika Okafor, born September 2, 2016

    (b) Rohan Okafor, born January 20, 2019

9. No other children were born to or adopted by Applicant and Respondent during the marriage, and none are expected.

10. The parties have agreed to share decision-making responsibility for the child(ren), and the Applicant requests a parenting order to that effect pursuant to section 16.1 of the Divorce Act.

11. The Applicant requests that the child(ren) primarily reside with Priya Nair, who shall have the majority of parenting time.

VI. PROPERTY AND DEBTS

12. The parties acquired property during the marriage, including but not limited to real property, personal property, and financial accounts.

13. The Applicant requests an equalization of the parties' net family property pursuant to Part I of the Family Law Act, RSO 1990, c. F.3.

RELIEF REQUESTED

THE APPLICANT REQUESTS that the Court grant the following relief:

(a) A divorce order pursuant to section 8 of the Divorce Act, RSC 1985, c. 3 (2nd Supp.);

(b) Division of net family property pursuant to sections 5-9 of the Family Law Act, RSO 1990, c. F.3;

(c) An order for possession of the matrimonial home pursuant to section 24 of the Family Law Act;

(d) An order allocating responsibility for debts in an equitable manner;

(e) A parenting order specifying parenting time and decision-making responsibility pursuant to section 16.1 of the Divorce Act;

(f) A child support order pursuant to section 15.1 of the Divorce Act and the Federal Child Support Guidelines, SOR/97-175;

(g) An order confirming that neither party shall pay spousal support to the other, each party having waived any claim under section 15.2 of the Divorce Act;

(h) Such further and other relief as this Court deems just and appropriate.

_____

Priya Nair
Applicant, Self-Represented
Date: _____

VERIFICATION

I, Priya Nair, Applicant, make oath and say (or solemnly affirm) that the contents of this Application are true, to the best of my knowledge, information, and belief.